MODICAI DONGA
versus
GUGULETHU LINDOKUHLE MABUZA (also known as KUHLE MABUZA DHLAMINI)

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 30 June 2026

Special Plea

T James, for the plaintiff
J Ndlovu, for the defendant

DEMBURE J: Before this court is a special plea in bar raised by the defendant. The defendant specially pleaded in the main that she enjoys diplomatic immunity in terms of article 33(1) as read with article 37(1) of the Vienna Convention on Diplomatic Relations (1961), whose provisions are part of our domestic law, in particular, they are incorporated under the First Schedule to the Privileges and Immunities Act [*Chapter 3:03*]. That defence is taken on the basis that she is not a Zimbabwean national and is a member of the family that forms part of the household of a duly accredited diplomatic agent of the Kingdom of Eswatini (*"Eswatini"),* posted to Zimbabwe, to whom she is married. To that extent, the court is debarred from exercising its jurisdiction on the matter by virtue of her diplomatic immunity. In the alternative, the other ground raised is founded on the doctrine of *forum non conveniens,* it being argued that the courts in Eswatini, given the circumstances of the matter, would be the natural and appropriate forum. The special plea is contested. The parties gave evidence before the court reserved judgment *sine die*.

THE BACKGROUND

The plaintiff sued out a summons against the defendant on 29 August 2025, claiming payment of US$150 000 as damages for defamation, the retraction of the defamatory posts allegedly published by the defendant on all platforms, a public apology, and costs of suit on an attorney-client scale. The claim arises from the alleged publication of several posts on Facebook and WhatsApp, which the plaintiff alleges were defamatory, malicious, false and unjustified and

made by the defendant with the intention to demean, humiliate, injure, or harass the plaintiff's dignity and character. The posts were alleged to have been published by the defendant during a period spanning from 2022. The plaintiff quoted some of the posts published in 2025 verbatim and alleged that the defendant has made a total of 19 such defamatory posts concerning the plaintiff and that she has not relented. They stem from the allegations of sexual harassment which she allegedly endured at the hands of the plaintiff while she was working at *S* v *Mdladla and Associates,* a law firm based in Mbabane, Eswatini.

The plaintiff, in his own pleadings, stated that he is a senior partner at the said law firm. He is also a Zimbabwean national. It is common cause that the defendant is a citizen of Eswatini and has no Zimbabwean nationality. She is also an admitted attorney in Eswatini who worked under the plaintiff at *S* v *Mdladla and Associates* in Eswatini until August 2022.

After initial attempts to serve the defendant with the summons here in Zimbabwe at number 24 Golden Stairs premises and at number 34 Arcturus Road, Highlands, Harare, the plaintiff sought and obtained leave to serve the summons through publication in The Herald newspaper and through the defendant's email address. I granted the order for substituted service of the summons on 5 November 2025. Upon service of the summons, the defendant entered an appearance to defend the claim on 28 November 2025. Subsequent to this pleading, the defendant filed a special plea in bar.

The defendant specially pleaded, in the main, diplomatic immunity under article 33(1), as read with article 37(1). The basis for invoking diplomatic immunity is that she is a national of Eswatini and is married to a duly accredited diplomatic agent of the Kingdom of Eswatini, currently posted to Zimbabwe, namely, Brian Mlondi Dlamini (*"Mr Dlamini"*). As her husband enjoys full diplomatic immunity from civil jurisdiction of the courts in Zimbabwe in terms of the Privileges and Immunities Act, which gives domestic effect to the Vienna Convention on Diplomatic Relations (1961) (*"the Vienna Convention"*), she also is covered by that immunity as a member of his family forming part of his household. The alternative ground for objecting to the court's jurisdiction was founded on the doctrine of *forum non conveniens*. The prayer was for the special plea to be upheld with costs on a legal practitioner and client scale.

In the plaintiff's replication, it was denied that the defendant enjoys diplomatic immunity from civil proceedings in this jurisdiction by virtue of being married to a duly accredited diplomat of Eswatini. The contention was that the diplomatic immunity is derivative and is strictly limited to acts connected to official diplomatic functions. That it does not extend to private unlawful conduct under which the claim for defamation would fall. He further contended that there was no evidence of any diplomatic recognition by the Ministry of Foreign Affairs and that the defendant forms part of the officially recognised household. It was also averred that there was abuse of diplomatic privilege, as it does not extend to cover private wrongdoing. I hasten to state that in para 18 of the replication, the plaintiff clearly accepted that the defendant is married to Mr Dhlamini by further stating that her husband is also present in Zimbabwe. This admission may explain why in the summons the defendant was cited as one who is also known as "KUHLE MABUZA DHLAMINI". In respect of the alternative ground based on the doctrine of *forum non conveniens*, the defendant pleaded that the courts in Zimbabwe were the appropriate forum.

In light of the dispute related mainly to the challenged formal accreditation of the defendant's husband, and if she is also formally recognised as a member of the diplomatic agent's family, and the facts related to the appropriate forum, it was only proper that the court hears evidence to determine the special plea. The law is settled that where the facts are in dispute, it would be improper for the court to determine a special plea in the absence of evidence. Thus, the parties would be required to adduce evidence unless all the facts relevant to the determination of a special plea are common cause or admitted. See *Brooker* v *Mudhanda & Anor: Pierce* v *Mudhanda & Anor* SC 05/18 at p 17. I accordingly directed that the parties adduce evidence on the special plea, starting with the defendant. The defendant bears the *onus* of establishing her special plea. The parties gave their testimonies on 13 and 19 May 2026 and also further filed closing submissions. I will first address the main ground of the special plea, which concerns diplomatic immunity. It is a special defence that is dispositive of this matter. In respect of that issue, the parties made the following submissions.

THE WRITTEN SUBMISSIONS

It was submitted for the defendant that she established that she is not a Zimbabwean national but a citizen and resident of Eswatini. That she is married to Brian Mlondi Dhlamini, as per the marriage certificate tendered as Exhibit 2. It was further argued that it was not seriously

controverted that she is lawfully married to an accredited diplomat of Eswatini posted to Zimbabwe. The diplomatic identity card was also produced. That identity is a formal and official recognition of the individual's diplomatic status within Zimbabwe. Counsel further submitted that the letter at p 139 of the trial record proved nothing about her marital status or her relationship with Brian Mlondi Dhlamini. It simply stated she was not known at that address, which was the business premises of her spouse's employer. She stated that she forms part of her husband's household and resides with him during her periodic visits to the country. The s 15(2)(e) accreditation stamped in the defendant's passport is further compelling evidence of her diplomatic status.

Mr *Ndlovu* also argued that the plaintiff, on the other hand, suggested that anyone can doctor or forge a marriage certificate without any supporting evidence. His testimony is remarkable for its recklessness and is comprehensively destroyed by documentary evidence produced by the defendant. The plaintiff's evidence on the defendant's marriage and diplomatic status is discredited by para 4 of the letter from the plaintiff's own law firm, *S* v *Mdladla and Associates*, to the defendant. The letter expressly acknowledges that the defendant is married to a diplomat. Under cross-examination, his response was evasive and legally irrelevant. The defendant produced official state-issued documents confirming her diplomatic status, but the plaintiff produced no documents to rebut any of the four exhibits.

It was further submitted that the Privileges and Immunities Act incorporates the Vienna Convention and has the force of law in Zimbabwe. Article 31(1) provides that a diplomatic agent enjoys immunity from civil and administrative jurisdiction of the receiving states, subject only to the three exceptions under para(s) (a), (b) and (c), and none of these applies to this case. Defamation is not within any of the exceptions. Article 37(1) extends the same protection in full to members of the diplomatic agent's family who are not nationals of the receiving state. The defendant satisfies all three qualifying conditions, as she has proved that she is the spouse and a member of the household of an accredited diplomat and is not a Zimbabwean national. Once diplomatic immunity is established, the court is legally barred from hearing the matter.

Counsel also argued that the plaintiff's argument seeking to distinguish between official acts and private acts reveals a fundamental misunderstanding of the applicable law. The issue of residual immunity does not arise. It is that which, under article 39, is limited to official acts

committed while the diplomat was in the post. That is the context of the case of *Reyes* v *Al-Malki* [2017] UKSC 61. Counsel also cited the cases of *R (Dunn) v Secretary of State for Foreign and Commonwealth Affairs* [2020] EWHC 3185; *Fernando* v *Sathananthan* [2021] EWHC 652. It was further argued that the case of *Democratic Alliance* v *Minister of International Relations and Co-operation & Ors; Engels & Anor* v *Minister of International Relations and Co-operation & Anor* [2018] 4 All SA 131 (GP), relied on by the plaintiff, is entirely different from this case and the principles set out therein are inapplicable to the present matter. The defendant's own case is governed by article 31(1), which grants diplomatic agents full immunity from civil jurisdiction, and article 37(1), which extends the same protection to members of the family forming part of his household.

The court was also referred to the United States Court of Appeals for the Fourth Circuit case of *Tabion* v *Mufti*, 73 F.3d 535 (4th Cir. 1996) as authority that the spouse and family members of the accredited diplomat enjoy near absolute immunity from civil jurisdiction of the receiving state by virtue of article 37(1) of the Vienna Convention. The court cannot recognise additional "private acts" exception beyond the three enumerated in the convention. The accreditation under s 15(2)(e) of the Immigration Act is not a mere administrative formality. It is a conferment of substantive legal status that carries with it diplomatic immunity. It is the state's endorsement of the defendant's immunity, and the special plea must succeed. Costs are sought on a punitive scale. I will relate to the submissions on the question of costs later in this judgment.

Per contra, it was submitted for the plaintiff that the defendant's case was blown apart under cross-examination. Counsel contended that it was shown that the defendant is a resident in Zimbabwe and that at the time of the defamation, she was in Zimbabwe working at Mtetwa and Nyambirai. The defamation has nothing to do with any diplomatic missions. The marriage certificate she sought to rely on as proof of marriage was controverted for having contradictory dates and alterations. The plaintiff was clear that he knows the defendant as an unmarried woman, and she made the posts using her Facebook page, which she runs for commercial and not diplomatic purposes. It was further argued that the plaintiff controverted that the defendant is immune.

Mr *James* also argued that the immunity under articles 31 and 37 is extended to family members forming part of the diplomat's household, but only to the extent necessary for the

effective performance of official diplomatic functions. Derivative immunity is functional, not personal. The law distinguishes between official acts, which attract immunity, and private acts, which do not. It was stated that the defendant produced no evidence of her formal accreditation, and her derivative immunity must fail. The defendant's publication of defamatory statements on a personal Facebook account was a private act. These were not connected to any official diplomatic function and, therefore, were not covered by domestic law or the Vienna Convention. The principle is confirmed in the *Democratic Alliance* v *Minister of International Relations and Co-operation & Ors; Engels & Anor* v *Minister of International Relations and Co-operation & Anor* case (*supra*), where the South African High Court held that derivative immunity does not protect spouses from private wrongdoing; the immunity is limited to acts in the exercise of official functions. Counsel further also relied on the case of *Reyes* v *Al-Malki* (*supra*). The plaintiff maintained that the defamatory posts were not connected to any diplomatic function. They were private acts, and diplomatic immunity does not cover private acts. The prayer was that the special plea on immunity must be dismissed.

THE ISSUE FOR DETERMINATION

The court must determine whether or not the defendant enjoys diplomatic immunity from the civil jurisdiction of the court.

THE LAW ON DIPLOMATIC IMMUNITY

Diplomatic immunity is one of the oldest principles of customary international law. The law was fully codified in the Vienna Convention on Diplomatic Relations, 1961 (*"the Vienna Convention"*). The Vienna Convention was domesticated into our law. Thus, the Privileges and Immunities Act (*"the Act"*) expressly incorporates the articles of the Vienna Convention as the law of Zimbabwe; in particular, it is set out in the First Schedule to the Act. Section 3(1) of the Act is explicit that:

> "**3. Application of Vienna Convention on Diplomatic Relations**
>
> (1) Subject to this Act, the Articles of the Vienna Convention on Diplomatic Relations set out in the First Schedule shall have the force of law in Zimbabwe."

It is trite that diplomatic immunity is procedural. It is immunity from the jurisdiction of the courts in the receiving state. It is not immunity from liability as the diplomatic agent may still be sued in his own country or in respect of non-official acts in the receiving state once his

posting has ended. See *Reyes* v *Al-Malki* (*supra*) para 7, where LORD SUMPTION succinctly remarked as follows:

> "As the International Court of Justice has pointed out (*Democratic Republic of the Congo v Belgium* (Arrest Warrant of 11 April 2000) [2002] ICJ Rep 3, at paras 59-61), **diplomatic immunity is not an immunity from liability. It is a procedural immunity from the jurisdiction of the courts of the receiving state**. The receiving state cannot at one and the same time receive a diplomatic agent of a foreign state and subject him to the authority of its own courts in the same way as other persons within its territorial jurisdiction. But the diplomatic agent remains amenable to the jurisdiction of his own country's courts, and in important respects to the jurisdiction of the courts of the receiving state after his posting has ended. I do not underestimate the practical problems of litigating in a foreign jurisdiction, especially for someone in Ms Reyes' position. Nor do I doubt that diplomatic immunity can be abused and may have been abused in this case. **A judge can properly regret that it has the effect of putting severe practical obstacles in the way of a claimant's pursuit of justice, for what may be truly wicked conduct. But he cannot allow his regret to whittle away an immunity sanctioned by a fundamental principle of national and international law**. As the fourth recital of the Vienna Convention points out, "the purpose of such privileges and immunities is not to benefit individuals but to ensure the efficient performance of diplomatic missions as representing states." (*my emphasis*)

In respect of this special plea, the relevant articles relied upon by the defendant to invoke diplomatic immunity are articles 31(1) as read with 37(1) of the Vienna Convention. Article 31(1) states as follows:

> "1. A diplomatic agent shall enjoy immunity from the criminal jurisdiction of the receiving State. **He shall also enjoy immunity from its civil and administrative jurisdiction, except** in the case of—
> (a) a real action relating to private immovable property situated in the territory of the receiving State, unless he holds it on behalf of the sending State for the purposes of the mission:
> (b) an action relating to succession in which the diplomatic agent is involved as executor, administrator, heir or legatee as a private person and not on behalf of the sending State;
> (c) an action relating to any professional or commercial activity exercised by the diplomatic agent in the receiving State outside his official functions." (*my emphasis*)

The immunity under article 31(1) is extended to members of the family of a diplomatic agent forming part of his household by virtue of article 37(1). That is the derivative immunity invoked by the defendant in this case. The said article 37(1) states as follows:

> "1. The members of the family of a diplomatic agent forming part of his household shall, if they are not nationals of the receiving State, enjoy the privileges and immunities specified in Articles 29 to 36."

Accordingly, members of the family of a diplomatic agent have the same nearly absolute immunity from civil jurisdiction of the courts of the receiving state as applicable to the

diplomatic agent himself. The term "member of the family" is defined in s 3(2) of the Act to mean:

> "(a) the spouse or any dependent child of that person; and
> (b) any other person deemed by the Minister to be a member of the family in question".

There is no doubt, therefore, that the spouse of the diplomatic agent falls within the members of a diplomatic agent's family who in terms of article 37(1) shall enjoy the same diplomatic immunity applicable to a diplomatic agent under article 31(1).

The proper approach to interpreting the provisions of the articles or the Vienna Convention is also well established. The court must give effect to the ordinary meaning of the terms of the treaty in their context and in the light of its object and purpose. The word "shall" is accordingly mandatory. The rules of construction of international treaties would apply, as our Privileges and Immunities Act simply domesticated the articles of the Vienna Convention. In *Reyes* v *Al-Malki* (*supra*), the UK Supreme Court further stated that:

> "10. It is not in dispute that so far as an English statute gives effect to an international treaty, it falls to be interpreted by an English court in accordance with the principles of interpretation applicable to treaties as a matter of international law. That is especially the case where the statute gives effect not just to the substance of the treaty but to the text: *Fothergill v Monarch Airlines Ltd* [1981] AC 251, esp at pp 272E, 276-278 (Lord Wilberforce), 281-282 (Lord Diplock), 290B-D (LORD SCARMAN).
>
> 11. The primary rule of interpretation is laid down in article 31(1) of the Vienna Convention on the Law of Treaties (1969):
>
> > **'A treaty shall be interpreted in good faith in accordance with the ordinary meaning to be given to the terms of the treaty in their context and in the light of its object and purpose.'**
>
> **The principle of construction according to the ordinary meaning of terms is mandatory ("shall"), but that is not to say that a treaty is to be interpreted in a spirit of pedantic literalism. The language must, as the rule itself insists, be read in its context and in the light of its object and purpose**. However, the function of context and purpose in the process of interpretation is to enable the instrument to be read as the parties would have read it. It is not an alternative to the text as a source for determining the parties' intentions.
>
> 12. In the case of the Convention on Diplomatic Relations, there are particular reasons for adhering to these principles:
>
> (1) Like other multilateral treaties, the text was the result of an intensely deliberative process in which the language of successive drafts was minutely reviewed and debated, and if necessary amended. **The text is the only thing that all of the many states party to the Convention can be said to have agreed**. The scope for inexactness of language is limited.

(2) The Convention must, in order to work, be capable of applying uniformly to all states. The more loosely a multilateral treaty is interpreted, the greater the scope for damaging divergences between different states in its application. **A domestic court should not therefore depart from the natural meaning of the Convention unless the departure plainly reflects the intentions of the other participating states, so that it can be assumed to be equally acceptable to them**. As LORD SLYNN observed in *R v Secretary of State for the Home Department, Ex p Adan* [2001] 2 AC 477, 509, an international treaty has only one meaning. The courts "cannot simply adopt a list of permissible or legitimate or possible or reasonable meanings and accept that any one of those when applied would be in compliance with the Convention." (*my emphasis*)

See also *R v Secretary of State for Foreign and Commonwealth Affairs* (*supra*).

The same legal principles on the construction of the articles of the Vienna Convention were set out in the American case of *Tabion* v *Mufti* (1996) 107 ILR 452, a decision of the American Fourth Circuit Court of Appeals, where ELLIS J said:

"Because the meaning of a treaty provision is at issue, a review of elementary principles of treaty construction is appropriate. Of course, **it is important to recognize that treaties are contracts between foreign sovereigns**. *De Geofroy v. Riggs*, 133 U.S. 258, 271, 10 S. Ct. 295, 298, 33 L. Ed. 642 (1890); 74 Am.Jur.2d *Treaties* § 4 (1974). As such, **they must be construed in a manner designed to give effect to the intent of the signatories.** *Id.* at § 26. And, to determine that intent, **the proper starting point is, with treaties as with contracts, the text of the provision itself**. *See, e.g., Eastern Airlines, Inc. v. Floyd*, 499 U.S. 530, 111 S. Ct. 1489, 113 L. Ed. 2d 569 (1991) (citations omitted); *Sumitomo Shoji America, Inc. v. Avagliano*, 457 U.S. 176, 180, 102 S. Ct. 2374, 2377, 72 L. Ed. 2d 765 (1982) (citations omitted). Thus, the language of a treaty controls when it is clear, unambiguous, and consistent with the intent of the signatories. *United States v. Stuart*, 489 U.S. 353, 365-66, 109 S. Ct. 1183, 1190-91, 103 L. Ed. 2d 388 (1989) (citations omitted); *Sumitomo*, 457 U.S. at 180, 102 S. Ct. at 2377 (citations omitted). But in light of the treaty's international nature, courts must be cautious to avoid a rote application of locally established meanings of phrases and words where such an application would lead to results inconsistent with the signatories' purpose. *De Geofroy*, 133 U.S. at 271, 10 S. Ct. at 298; 74 Am.Jur.2d *Treaties* § 33. And, because the signatories' intent is paramount, courts "may look beyond the written words to the history of the treaty, the negotiations, and the practical construction adopted by the parties." *Air France v. Saks*, 470 U.S. 392, 397, 105 S. Ct. 1338, 1341, 84 L. Ed. 2d 289 (1985) (quoting *Choctaw Nation of Indians v. United States*, 318 U.S. 423, 431-32, 63 S. Ct. 672, 677-78, 87 L. Ed. 877 (1943)). *Accord Eastern Airlines*, 499 U.S. at 535, 111 S.Ct. at 1493-94; 74 Am.Jur.2d *Treaties* § 32 (stating that in interpreting a treaty, courts should consult its history as well as the parties' negotiations and diplomatic correspondence).

Finally, it is a fundamental rule of treaty construction that their provisions be liberally construed, more so than private agreements. *See, e.g., Eastern Airlines*, 499 U.S. at 535, 111 S. Ct. at 1493-94 (citations omitted); *Saks*, 470 U.S. at 397, 105 S. Ct. at 1341 (citation omitted); *Choctaw*, 318 U.S. at 431-32, 63 S.Ct. at 677-78; 74 Am.Jur.2d *Treaties* § 24. Thus, "[w]hen a treaty provision fairly admits of two constructions, one restricting, the other enlarging, rights which may be claimed under it, the more liberal interpretation is to be preferred." *Nielsen v. Johnson*, 279 U.S. 47, 52, 49 S. Ct. 223, 224, 73 L. Ed. 607 (1929) (citing *Asakura v. Seattle*, 265 U.S. 332, 44 S.

> Ct. 515, 68 L. Ed. 1041 (1924); *Tucker v. Alexandroff,* 183 U.S. 424, 22 S. Ct. 195, 46 L. Ed. 264 (1902); *De Geofroy,* 133 U.S. at 271, 10 S.Ct. at 298). *Accord United States v. Stuart,* 489 U.S. 353, 109 S. Ct. 1183, 103 L. Ed. 2d 388 (1989). *See also* 74 Am.Jur.2d *Treaties* § 24." (*my emphasis*)

ANALYSIS AND DETERMINATION

The importance of pleadings cannot be overemphasised. The generally accepted principle is that a party cannot plead one case and seek to prove another at the trial. A party is bound by his pleadings, and it is those pleadings which define the issues that the court is called upon to determine. One who pays little regard to his own pleadings may find himself unable to prove his case on trial. The party cannot blame anyone when the court strictly confines him to his case as pleaded. See *Medlog Zimbabwe (Pvt) Ltd* v *Cost Benefit Holdings (Pvt) Ltd* SC 24/18, para 25.

The replication to a special plea informs the court of the plaintiff's rebuttal of the special plea. It is also the pleading from which issues for determination can be deduced. Thus, in *Brooker v Mudhanda* (*supra*) at p 133, GOWORA JA (as she then was) outlined the purpose of filing a replication in the following words:

> "After being served with the special plea of prescription the respondent should have replicated. **The purpose of a replication is to inform the court and the defendant of the plaintiff's rebuttal to the special plea**. The failure by the respondent to file a replication to the special plea means that there are no disputes for determination on the special plea. In **the absence of such replication there would be no issue for determination by the court** *a quo.*" (*my emphasis*)

The defendant, in her special plea, pleaded that she is married to a duly accredited diplomat, Brian Mlondi Dlamini, and forms part of his household, and, therefore, she enjoys diplomatic immunity from civil jurisdiction of the court in terms of article 31(1) as read with article 37(1) which extends the same immunity to a member of the family of the diplomatic agent forming part of his household. The plaintiff, in para 4 of the replication, did not specifically controvert the allegation that the defendant is married to a duly accredited diplomat. Rather, the plaintiff's answer is directed generally to para(s) 1-5, and state as follows:

> "**AD PARAGRAPH 1-5**
> 4. The Defendant's submission that she enjoys full immunity from civil proceedings by virtue of being married to a duly accredited diplomat of the Kingdom of Eswatini is denied in its entirety and is unsubstantiated in law.
> 5. The Privileges and Immunities Act [*Chapter 3:03*] extends certain privileges and immunities to family members forming part of a diplomat's household only to the extent that such immunity is necessary to facilitate the effective performance of diplomatic functions.

6. It is respectfully submitted that any immunity available to the Defendant is derivative and not personal, and is strictly limited to acts connected to official diplomatic functions. Crucially, it does not extend to private, voluntary, or unlawful conduct."

It is clear from the above pleading that the issue of the defendant's marriage status is not specifically denied. The contention is directed rather to the question of whether, being married to a duly accredited diplomat, would entitle her to enjoy full immunity from civil proceedings. The further averment therein is that the Act extends privileges and immunity to family members only to the extent necessary to facilitate effective performance of diplomatic functions. That it does not extend to private unlawful conduct. The law is settled that what is not denied is taken to have been admitted or conceded. See *Ziyambi* v *Laryscope (Pvt) Ltd* HH 295/18; *Fawcett Security Operations (Pvt) Ltd* v *Director of Customs & Excise & Ors* 1993 (2) ZLR 121 (S).

The plaintiff further makes a formal admission acknowledging the defendant's marital status or that she is married to the diplomat in question, Mr Dhlamini, in para 18 of his replication as follows:

> "The Defendant alleges citizenship of the Kingdom of Eswatini, but fails to disclose that she is currently resident and physically present in Zimbabwe. **Her husband is also present in Zimbabwe**." (*my emphasis*)

Even at the hearing when he was giving evidence, the plaintiff first admitted this, though he later sought to change his version. This exchange in his evidence in chief is testimony to this:

> "Q. She testified that she resides in Eswatini, what is your comment?
>
> A. She lied. **She resides in Zimbabwe with her husband.**
>
> Q. She had mentioned that she resides with her husband in Zimbabwe, do you know her as married?
>
> A. She said that herself. I do not know that she is married. I know she stays with a gentleman called Brian Mlondi Dlamini." (*my emphasis*)

Given the above position taken in his pleading, being the replication and what he initially stated for which he could not take a different position, as one cannot approbate and reprobate, the plaintiff clearly admitted that the defendant was married to Brian Mlondi Dhlamini or that the said person was her husband. The attempts to shift from the admissions made are of no consequence. He is bound by his admission and could not depart therefrom informally or without the leave of court. The law on the effect of admissions is settled. It is trite that once admissions are made, it shall not be necessary or required to prove any fact admitted or lead any evidence to

contradict the admitted fact on record. See s 36 of the Civil Evidence Act [*Chapter 8:01*] which states:

> "**36. Admissions**
> (1) **An admission as to any fact in issue in civil proceedings, made by or on behalf of a party to those proceedings, shall be admissible in evidence as proof of that fact, whether the admission was made orally or in writing or otherwise.**
> (2) …
> (3) **It shall not be necessary for any party to civil proceedings to prove any fact admitted on the record of the proceedings**.
> (4) **It shall not be competent for any party to civil proceedings to disprove any fact admitted by him on the record of the proceedings**:
> Provided that this subsection shall not prevent any such admission **being withdrawn with leave of the court**, in which event the fact that the admission was made may be proved in evidence and the court may give such weight to the admission as the court considers appropriate, bearing in mind the circumstances in which it was made and withdrawn." (*my emphasis*)

The legal effect of an admission was fully explained in *Manyenga* v *Petrozim (Pvt) Ltd* SC 40/23, where the court made the following pertinent remarks:

> "32. The effect of an admission has been held to be the following in the case of *Potato Seed Production (Proprietary) Ltd v Princewood Enterprises (Pvt) Ltd & Ors* HH 45-17 at p 4;
> 'Indeed, the effect of an admission is settled law. Once made it binds its maker with the attendant consequences see *Kettex Holdings P/L v S Kencor Management Services P/L* HH 236-15.'
> 33. The consequences of making an admission which is not withdrawn is that it will not be necessary to prove the admitted fact(s): *Adler v Elliot* 1988 (2) ZLR 283 (S) at 288C. In addition, this Court, in the case of *Mashoko v Mashoko & Ors* SC 114-22, held that:
> 'The law on admissions in pleadings and indeed in evidence, is also settled. **A party to civil proceedings may not, without the leave of the court, withdraw an admission made, nor may it lead evidence to contradict any admission the party would have made**. By equal measure, a party is not permitted to attempt to disprove admissions made.'" (*my emphasis*)

In my view, therefore, there was no longer any legal requirement on the defendant to prove her marriage to Mr Dhlamini, given the admissions made by the plaintiff. In any case, she managed to show that she is married to the person in question. The attack on her marriage certificate centred firstly on the copy initially produced as Exhibit 2, item 6, which states the PIN numbers of the parties. It was shaded. She explained why she had done so. The issue was resolved after the court allowed her to replace that copy with the clean copy of her marriage certificate, which was subsequently uploaded on the system and forms part of the trial record. Mr *James* consented to the production of that document and advised that if there were issues, he would raise them. No further issues were raised. That marriage certificate clearly shows that she

is married to Brian Mlondi Dhlamini. The defendant's allegations that it can be forged were simply generalised and bald. They are insufficient to establish anything. It is trite that bald and unsubstantiated assertions do not establish a party's purported or announced position. See *Buchwa Iron Ore Mining Company (Pvt) Ltd* v *Sheriff of the High Court Gweru N.O & Anor* SC 94/24 para 34.

I also find the plaintiff's evidence incredible on this issue, as he sought to deny even what he had pleaded. I have already stated that, in para 18 of his own pleading, he accepted that her husband is the said Brian Mlondi Dhlamini, with whom she resides in Zimbabwe. While Mr *Ndlovu*, when cross-examining the plaintiff, related to the letter from *S* v *Mdladla and Associates*, directed to the defendant at p 59, I will not consider it in my analysis. The reason is that it was not formally tendered as evidence by the defendant, and the truth of its contents was not judicially admitted by the plaintiff. The general rule is that the court shall not consider any evidence not formally offered unless the truth of its contents has been judicially admitted. In *casu*, the plaintiff refused to comment on the letter, saying that he was not the author and that the law firm was not acting on his instructions. The fact that the said letter at p 59 cannot be considered, however, does not affect my findings above.

The resort to the letter at p 139 (Exhibit 8) from Nembo Attorneys dated 8 April 2025 is simply an act of desperation. There is nothing in that letter which can be taken as showing that the said Mr Dhlamini disputed the marriage or that he is married to the defendant. The letter itself exposes the defendant. It states clearly that:

"Further, **the Respondent** in the said application **is unknown at the served address**." (my *emphasis*)

There is no dispute that the address in question is the place of business of Mr Dhlamini's employer, The Southern Africa Power Pool Company. It is not the defendant's place of residence. That she is unknown at that place does not mean that she is not married. The statement by the legal practitioners does not relate to any marriage or to her marital status. Accordingly, that letter is not evidence that she is not married to the diplomat.

It was proved that Brian Nlondi Dhlamini (*"Mr Dhlamini")* is a duly accredited diplomat. The defendant produced the accreditation identity card issued by the Ministry of

Foreign Affairs, which was admitted as Exhibit 3. That document was never challenged entirely under cross-examination of the defendant. Even in his own testimony, the plaintiff did not challenge that evidence. What is not challenged under cross-examination must be taken as having been conceded or admitted. It was not challenged that he is a Swazi national currently on official posting in Zimbabwe. The defendant, therefore, not only established that she is married to Mr Dlamini and stays with him when she is in the country, but that Mr Dlamini is a duly accredited diplomatic agent on posting in the country. She testified that she stays with her husband when she is in the country, a position confirmed by para 18 of the plaintiff's replication. She accordingly falls into the category of persons with derivative immunity under article 37(1). There is no doubt that she is a member of his family, forming part of the diplomat's household as the spouse as defined under s 3(2) of the Privileges and Immunities Act.

Further, a copy of the defendant's passport, duly stamped as an official recognition under s 15(2) (e) of the Immigration Act, tendered as Exhibit 4 at p 52, was not challenged at all. Even under cross-examination, that official endorsement was not challenged. The relevant provisions state as follows:

> "**15. Persons who are not prohibited persons**
> (1) …
> (2) The following persons or classes of persons shall not be prohibited persons—
> …
> (e) any person who is—
> (i) duly accredited to Zimbabwe by the government of any sovereign state; or
> (ii) employed in the legation, chancellery or office of a person referred to in subparagraph (i); or
> (iii) a member of the household or an employee of any person referred to in subparagraph (i) or (ii)…"

The s 15(2)e endorsement clearly shows that the defendant is formally recognised as a member of the household of a duly accredited diplomatic agent. That she was the spouse of a duly accredited diplomat was not, in any case, specifically controverted in the replication. Even at the hearing, there was also no evidence to rebut the above official document. There being no challenge to Exhibit 4, nothing can turn on the belated attempt by counsel for the plaintiff, in para 3 of his closing submissions, to argue that the defendant has produced no evidence of any formal accreditation. Her diplomatic status arises from her marriage to the diplomat, making her a member of his household or spouse. That position is further supported by the unchallenged

evidence in Exhibit 5, being the stamped endorsement on her passport. That accreditation is valid until 31 December 2026. If this is not evidence of her status as a member of the diplomat's household, then I wonder what this can be called. It was accordingly misplaced for the plaintiff to argue that there is no proof of her official recognition or accreditation that would grant her diplomatic status.

I now turn to the applicable articles. Article 37(1) provides that members of the diplomatic agent's family forming part of his household, who are not nationals of the receiving state, enjoy the same privileges and immunities, which include those provided under article 31(1). As I alluded to above, the defendant is the spouse of the duly accredited diplomatic agent of Eswatini on a posting in the receiving state, namely Zimbabwe. She is part of his household, and there was no evidence to seriously challenge this fact. It is also common cause that the defendant is not a national of Zimbabwe; she is a national of Eswatini. She accordingly qualifies for the same immunity applicable to her husband under article 31(1), which also falls under the specified articles being articles 29 to 36. The immunity from civil jurisdiction of the courts of the receiving state in respect of the diplomat is fully extended to cover the defendant by virtue of article 37(1). She is, therefore, entitled to derivative immunity under article 37(1).

There is a difference when it comes to those who are members of the administrative and technical staff of the missions together with their families forming part of their respective households who only enjoy the other privileges and immunities specified in articles 29 to 35 but with an exception that the immunity from civil and administrative jurisdiction of the receiving state under article 31(1) shall not extend to acts performed outside the course of their duties. This qualification does not arise in article 37(1) applicable to the defendant. Resort must be had to the provisions of article 31(1) on the nature and extent of the immunity from civil jurisdiction enjoyed by the defendant as the spouse who forms part of the diplomat, Mr Dhlamini's household.

This brings me to article 31(1). I agree with Mr *Ndlovu* that a reading of the counsel for the defendant's submissions reveals a serious misunderstanding of this article, which is applicable when the diplomat is in post and the concept of residual immunity which arises when the diplomat leaves his post, as further provided under article 39(2). The distinction between the

legal regimes was fully explained in *Reyes* v *Al-Malki* (*supra*) in para(s) 18-19, where the court had this to say:

> "18. The Vienna Convention distinguishes between diplomatic agents (ie ambassadors and members of their diplomatic staff), the administrative and technical staff of the mission, their respective families, and service staff of the mission. **The highest degree of protection is conferred on diplomatic agents**. In their case, the **Convention substantially reproduces the previous rules of customary international law, by which a diplomatic agent was immune from the jurisdiction of the receiving state (i) in respect of things done in the course of his official functions for an unlimited period, and (ii) in respect of things done outside his official functions for the duration of his mission only**: see *Zoernsch v Waldock* [1964] 1 WLR 675, 684 (WILLMER LJ), 688 (DANCKWERTS LJ), 691-692 (DIPLOCK LJ). **Thus, article 31(1) confers immunity on diplomatic agents currently in post in respect of both private and official acts, subject to specific exceptions for the three designated categories of private act**. Under article 39(2), once a diplomatic agent's functions have come to an end, his immunities under article 31 will normally cease from the moment when he leaves the territory of the receiving state. **Thereafter, he remains immune in the receiving state only with respect to "acts performed … in the exercise of his functions as a member of the mission". This is commonly known as the "residual" immunity**. It is one of four cases in which, in contrast to the immunity under article 31, a protected person's immunity is limited to official acts, the others being (i) the immunity conferred on a diplomatic agent who is a national of or permanently resident in the receiving state, which is limited to "official acts performed in the exercise of his functions" (article 38(1)); (ii) the immunity conferred on administrative and technical staff of a mission, which "shall not extend to acts performed outside the course of their duties" (article 37(2)); and (iii) domestic staff of the mission, whose immunity is confined to "acts performed in the course of their duties" (article 37(3)). The same distinction applies to consular officers and employees under article 43 of the parallel Vienna Convention on Consular Relations (1963). Their immunity is limited to "acts performed in the exercise of consular functions"
>
> 19. **Article 31(1)(c) is one of three carefully framed exceptions to the general immunity from civil jurisdiction conferred on diplomatic agents in post**. The exception applies if both of two conditions are satisfied: (i) that the action relates to a "professional or commercial activity exercised by the diplomatic agent", and (ii) that the exercise of that activity was "outside his official functions". These are distinct requirements. If the relevant acts were within the scope of the diplomat's official functions, the enquiry ends there. He is immune. Moreover, he will retain the residual immunity in respect of them even after his posting comes to an end. But if he is still in post and the relevant activity is outside his official functions, the operation of the exception will depend on whether it amounts to a professional or commercial activity exercised by him." (*my emphasis*)

The issue of residual immunity does not arise in this case, as it is common cause that the defendant's husband is still on his posting. In the *Reyes* case, the UK Supreme Court had to deal with the interpretation of article 31(c) and in the context that Mr Al-Malki's posting had ended and concluded in para 48 as follows:

> "It does not make the employment of Ms Reyes part of Mr Al-Malki's official functions as a diplomatic agent. Since Mr Al-Malki's functions as a diplomatic agent have now come to an end, he is no longer entitled to any immunity under article 31. The only immunity available to him is

> the residual immunity under article 39(2). It follows from the fact that the relevant acts were not done in the course of his official functions that that immunity cannot apply. Likewise, Mrs Al-Malki is no longer entitled to any immunity at all."

Article 31(1) is very clear that a diplomatic agent shall enjoy diplomatic immunity from civil jurisdiction of the receiving state, subject to the only exceptions specified under paragraphs (a), (b) and (c). The exceptions are a closed, exhaustive list. The court has no authority to expand the exceptions beyond what is expressly enumerated. The recognised exceptions are, therefore, only in respect of the specified cases, namely:

> "(a) a real action relating to private immovable property situated in the territory of the receiving State, unless he holds it on behalf of the sending State for the purposes of the mission:
>
> (b) an action relating to succession in which the diplomatic agent is involved as executor, administrator, heir or legatee as a private person and not on behalf of the sending State;
>
> (c) an action relating to any professional or commercial activity exercised by the diplomatic agent in the receiving State outside his official functions."

To simply say a defamatory act or conduct is a private act and does not form part of an official function does not suffice. The correct argument should be whether the private acts complained of fall within the recognised exceptions to disentitle the defendant from the immunity from the civil jurisdiction of the court. Clearly, the first exception under para (a) does not apply as it concerns an action relating to private immovable property. The second exception in para (b), which relates to the agent's involvement as a representative of a deceased estate in his personal capacity, is also inapplicable. The third and finally recognised exception under para (c) concerns any professional or commercial activity undertaken by the diplomatic agent outside his official functions. The meaning of this paragraph was explained in the *Reyes* case (*supra*) para 38 in the following words:

> "From this history, three points can be extracted:
> (1) The activities covered by articles 31(1)(c) and 42 were intended to be the same.
> (2) They were activities involving the assumption by a diplomatic agent of a dual status, by which incompatible occupations were being pursued by the same person.
> (3) Occasions for the operation of either provision were expected to be very rare."

Further, in *Tabion v Mufti* (*supra*), the meaning of article 31(1)(c) was also explained as follows:

> "The third exception arises **in the case of proceedings relating to a professional or commercial activity exercised** by the diplomatic agent outside his official functions. It was urged that activities of these kinds are normally *wholly inconsistent* with the position of a diplomatic agent,

> and that one possible consequence of his engaging in them might be that he would be declared *persona non grata.* Nevertheless, such cases may occur and should be provided for, and if they do occur the persons with whom the diplomatic agent has had commercial or professional relations cannot be deprived of their ordinary remedies. …
>
> Thus, it is evident that **the phrase "commercial activity" in the Vienna Convention means a business or trade activity for profit**, and that Article 31(1) (c) was intended to reach those rare instances where a diplomatic agent ignores the restraints of his office and, contrary to Article 42, engages in such activity in the receiving State. Accordingly, a diplomat who strays from his diplomatic functions and runs a car business or becomes a tailor in the receiving State cannot then shelter himself behind diplomatic immunity when disputes arise out of that activity. Not only is this broader construction of immunity clearly consistent with the drafters' intent, but it also follows the fundamental principle that treaties should be liberally construed so as to enlarge, rather than restrict, rights that signatory nations may claim under them. *See Nielsen,* 279 U.S. at 52, 49 S. Ct. at 224." (*my emphasis*)

In *casu*, the plaintiff led no evidence to establish the third exception. It was he who alleged that the defendant was not covered by the immunity in question because her acts were private. He had to establish that any of the three exceptions was applicable. He completely failed to do so. In any case, the defamation claim cannot, by any stretch of imagination, be taken as an action relating to a business or trade activity for profit undertaken by the defendant. There was completely no evidence led relating to any business carried by the defendant for profit that could make the suit for defamation fall under the para (c) exception. Nothing points to the application of the only three recognised exceptions to the immunity under article 31(1)(a)-(c) in this case.

Accordingly, there are no private acts which fall within the closed list of the only recognised exceptions to the enjoyment by the defendant of her derivative immunity from the civil jurisdiction of this court. It is beyond doubt that the defendant enjoys derivative immunity from these civil proceedings in terms of article 31(1) as extended by article 37(1). Her special plea ought to succeed.

For completeness, I will address the case relied upon by the plaintiff: the *Democratic Alliance* case (*supra*). The reliance is erroneous. That case does not apply to the present matter. It is irrelevant to the particular circumstances before me. That case involved immunity *rationae personae*, a form of personal immunity derived from customary international law on the basis that Grace Mugabe was the spouse of a sitting head of state when she assaulted the complainant. The immunity claimed was not rooted in the Vienna Convention. The law related to that judgment concerns the diplomatic status of the family of the head of state and not the position of the family of a diplomatic agent, which is covered expressly by article 37(1). Article 1 defines

"the diplomatic agent" in terms of the Convention as "the head of the mission or a member of the diplomatic staff of the mission." The evidence of the accreditation of the defendant's husband as a diplomatic agent was not challenged. It follows that the applicable law is article 37(1), which extends the immunity from the civil jurisdiction of the receiving state under article 31(1) to the spouse who forms part of the diplomat's household. Accordingly, the argument and principles related to in the *Democratic Alliance* case have no place in this matter. Counsel for the plaintiff completely failed to appreciate the law outlined therein and the applicable law in this case.

THE QUESTION OF COSTS

Mr *Ndlovu*, in the closing submissions, argued that costs ought to be awarded on a punitive scale. The argument was further that the plaintiff's conduct in this case justifies that level of costs. That he instituted these proceedings with full knowledge of the defendant's diplomatic status. That was not an innocent procedural misstep but a calculated abuse of court process designed to harass the defendant. The plaintiff also alleged forgery of state documents without foundation. He made a serious and unjustified attack on the integrity of a foreign government, and the court must reflect its disapproval of such conduct. He recklessly persisted with this litigation. The plaintiff has, therefore, been made out of pocket by unnecessary litigation. There was no counterargument on the issue from Mr *James*, for the plaintiff, who insisted that the special plea ought to be dismissed.

It is trite that the award of costs is wholly within the discretion of the court. Courts do not lightly award costs on a legal practitioner and client scale. These costs must be justified. The principle of the law is that such costs are awarded in exceptional circumstances. See *Naik v Dongo & Anor* SC 52/20. It must be shown that there is an abuse of court process or such conduct by the losing party that should warrant the court to mark its displeasure by imposing costs on a higher scale.

In this case, if one properly considers the applicable law, the question of diplomatic immunity was clearly a difficult hurdle to overcome for the plaintiff. However, I have noted that, while he affirmed that he is also in legal practice, there appears to have been a failure to appreciate the law on diplomatic immunity as it applies to the defendant's defence. The

plaintiff's argument was muddled up by an erroneous reference to residual immunity and to the *Democratic Alliance* case as an authority relevant to this case. I must say that, though there was a lack of diligence, the conduct is not gross and unpardonable. Mistakes can be made by legal practitioners, but it does not follow that, in all cases, litigants must be mulcted by an order of punitive costs. In my view, while the plaintiff's position was not legally sound, it does not amount to reckless litigation or one designed solely to harass the defendant. I do not accept that the plaintiff has abused the court process. Failing to substantiate one's case is also not necessarily the same as being dishonest. There is no reason to penalise the plaintiff merely because he disputed state-issued documents without contrary evidence in rebuttal. I, therefore, fully endorse the pertinent remarks by MUSHORE J (as she then was) in *Crief Investments (Pvt) Ltd & Ors* v *Grand Home Centre (Pvt) Ltd & Ors* HH 12/18 at p 3, where she said:

> "In essence, the cases establish a position that courts should award costs at a higher scale in exceptional cases where the degree of irregularities, bad behaviour and vexatious proceedings necessitates the granting of such costs, and not merely because the winning party requested for them. Costs should not be a deterrent factor to access to justice where future litigants with genuine matters which deserve judicial alteration. In awarding costs at a higher scale the courts should therefore exercise greater vigilance."

I am not satisfied, therefore, that costs on a legal practitioner and client scale are warranted. However, there is no reason to depart from the general rule that the successful party ought to recover his or her costs. Such costs on the ordinary scale would meet the justices of the matter.

DISPOSITION

The defendant managed to discharge the *onus* on her to establish that she enjoys diplomatic immunity from the civil jurisdiction of this court by virtue of her derivative immunity under article 37(1) of the Vienna Convention, which is incorporated as the First Schedule to the Privileges and Immunities Act. She meets the conditions stated in the Convention to invoke diplomatic immunity. There is no doubt that she is a national of Eswatini, married to a diplomatic agent officially accredited by the Zimbabwean Ministry of Foreign Affairs, and that she forms part of his household. She thus enjoys nearly absolute immunity from the civil jurisdiction of the courts in Zimbabwe under article 31(1). This immunity offers the defendant absolute protection against these proceedings. The only recognised exceptions to that immunity under para(s) (a)-(c) of article 31(1) were not engaged by the plaintiff. They are,

in any case, inapplicable. There is no question of any valid waiver consistent with article 32 that arises. The plaintiff's claim is accordingly debarred by operation of law. The court accordingly withholds its jurisdiction.

Given that the first ground of the special plea invoking diplomatic immunity is successful, it becomes unnecessary for me to consider the applicability of the doctrine of *forum non conveniens.* I must terminate the enquiry.

It is accordingly ordered that:

1. The special plea of derivative diplomatic immunity is hereby upheld.
2. The plaintiff's claim is hereby dismissed with costs.

DEMBURE J: ……

Sithole & James Legal Counsel, plaintiff's legal practitioners
Ndlovu Attorneys, defendant's legal practitioners